



AGREED SETTLEMENT ORDER WITH STATUS DATE (DEFENDANTS WILL PAY & STAY)

IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: _____

County Where the Case Was Filed

Enter the case information as it appears on the Eviction Complaint.

PLAINTIFF: _____

First, Middle, Last Name

DEFENDANTS: _____

First, Middle, Last Name

☐ **Unknown Occupants**

Check the box for Unknown Occupants if it was checked on the Eviction Complaint.

_____ **Case Number**

1. THIS CASE WAS IN COURT FOR (check all that apply):

☐ Trial ☐ Hearing on Motion ☐ Status ☐ Other: _____

2. PEOPLE IN COURT (check all that apply):

☐ Plaintiff ☐ Plaintiff's lawyer ☐ Defendants' lawyer

☐ Defendants: _____

_____ *Name(s) of Defendants*

☐ Other: _____

3. COMPLIANCE (FOLLOW-UP) COURT DATE.

Enter the date and time the judge told you to come back to court.

This case is continued to _____ at _____ ☐ a.m. ☐ p.m.
Date (Month, Day, Year) Time

for ☐ Status - **OR** - ☐ Compliance
to see whether Defendants paid the amount listed in Section 5.

☐ **In person at:** _____
Courtroom Address, Courtroom Number

☐ **Remotely by video conference at:** _____
Video Conference Website

Log-in information: _____
Video Conference Log-in Information, Meeting ID, Password

ATTENTION DEFENDANTS: At the compliance (follow-up) court date, the parties will have an opportunity to explain to the judge whether or not this agreement has been followed.

FOR COOK COUNTY CASES ONLY:

The parties acknowledge that the defendant has been served with the Notice of ERP and prior to entering into this settlement agreement, the defendant confirms that:

- 1) I understand that I can speak to a free attorney about this agreement before I sign it.
- 2) I called and talked with an attorney, and now I want to sign this agreement, or I decided not to talk to an attorney, and I want to sign the agreement anyway.
- 3) I understand that an attorney may not be able to help me after I have signed the agreement.

4. DEFENDANTS ARE STAYING IN THE UNIT.**5. REPAYMENT AGREEMENT.**

In A, enter the current monthly rent or assessment amount.

In B, enter the total amount the parties agree is owed. Check i or ii to show how the money will be paid back.

In C, include any other agreed terms like method of payment or the address where payment will be sent.

- A. Defendant will continue to pay Plaintiff** current rent or assessments (not including the repayment amount) of \$_____ through the end of the payment plan in Section B.

- AND -

- B. Defendants will also pay Plaintiff** the agreed amount of \$_____ for all past due rent, assessments, court costs, and other amounts due under the lease/condo declaration.

Defendants will make the additional payments according to the following schedule:

- i. ☐ \$_____ ☐ monthly on the _____
Day of Month
- ☐ every two weeks
- ☐ every week
- beginning on _____ and continuing until paid in full.
Date (Month, Day, Year)

- OR -

- ii. ☐ The total amount on or before: _____
Date (Month, Day, Year)

- C. Other agreed terms (if applicable):**

6. REASONS FOR DISMISSAL OF CASE.

If Defendants **make all the payments** listed in Section 5, this case will be dismissed with prejudice at the next court date and Defendants can stay in the property. "With prejudice" means the case is over and the claims cannot be brought back to court.

7. VIOLATION OF AGREED ORDER.

In A, if you checked the third box, write in the number of days you agree on.

In B, the amount does not have to be the same as what is in Section 5.

If Plaintiff proves that Defendants violated the terms of this Agreed Order, the court will enter (check all that apply):

- A.** ☐ an Eviction Order if Defendants are still in the property. The Eviction Order can be enforced (choose one):
- ☐ immediately. (The sheriff can evict Defendants as soon as the Eviction Order is entered.)

- OR -

- ☐ only after _____ days.
Number

(The sheriff must wait that number of days after the Eviction Order is entered to evict Defendants.)

B. ☐ A Judgment for Money Only in Eviction Case will be entered for (check all that apply):

- ☐ the agreed amount of \$_____ minus any payments made.
Amount
- ☐ all rent/assessments due that Plaintiff proves are still owing.
- ☐ court costs.

against the following Defendants:

8. ADDITIONAL AGREED TERMS (if applicable):

9. REMOVING THE EVICTION COURT FILE FROM PUBLIC RECORD.

Check the box if both parties have agreed to ask the court to remove the eviction court file from the public record.

- ☐ The **parties agree to ask the judge to remove the eviction court file from the public record.** The parties understand that the judge will decide this.
- The parties also agree that **either party may reject the settlement** if the judge decides the file will not be removed from the public record.
 - If either party rejects the settlement, they can go to trial or try to negotiate a new agreement.



Do not complete Sections 10 or 11. The judge will complete this Section.

10. THE COURT FINDS:

A. This eviction is foreclosure related. Sealing is mandatory:

- ☐ Yes ☐ No

- OR -

B. The factors for discretionary sealing are met. This is not a finding that Plaintiff violated Illinois Supreme Court Rule [137](#):

- ☐ Yes ☐ No

C. Additional Findings:

11. IT IS ORDERED:

- ☐ The request to remove the file from the public record is **GRANTED**.
- ☐ The clerk shall ☐ seal ☐ impound this file upon entry of this *Agreed Order*.
- ☐ A separate order sealing or impounding this file will be entered.
- ☐ The request to remove the file from the public record is **DENIED**.
- ☐ The case is set for status hearing.
- ☐ The case is set for trial.

Next Court Date (if any): _____ at _____ ☐ a.m. ☐ p.m. in courtroom _____

Date *Time* *Courtroom #*

All parties (or their lawyer) who agree to this Order should sign it.

Signed and agreed to,

Plaintiff (or lawyer)

Defendant (or lawyer)

Defendant (or lawyer)

Defendant (or lawyer)

Defendant (or lawyer)

ENTERED:

Judge

Date (Month, Day, Year)

Enter the name and contact information of the person completing this Order:

Name

Address

Email

Telephone

Attorney Number (if any)